

25NNCV07078 25NNCV07078

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-09-16

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Case Number: 25NNCV07078 Hearing Date: September 16, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

David Flores, an individual,

Plaintiff,

vs.

Luis Enrique Flores Martinez,

Defender Private Security, LLC, Risen International Group, Inc., and DOES

1-10,

Defendants.

Case

No.:

25NNCV07078

Hearing

Date:

September

16, 2026

Time:

8:30 a.m.

[Tentative]

Order RE:

MOTION TO DEEM ADMITTED REQUESTS FOR
ADMISSION, SET ONE

MOTION TO COMPEL RESPONSES TO REQUESTS
FOR PRODUCTION, SET ONE

AND RELATED CROSS-ACTION.

MOVING PARTY: Plaintiff David Flores

RESPONDING PARTY: None.

The Court

considered the moving papers filed in connection with the instant motion.

BACKGROUND

On October 6, 2026,
Plaintiff David Flores ("Plaintiff") brought this action against Defendants
Luis Enrique Flores Martinez ("Defendant"), Defender Private Security, LLC
("Defender"), and Risen International Group, Inc. ("Risen"), alleging causes of
action for (1) assault, (2) battery, (3) negligent training, (4) negligent
supervision, (5) negligence, and (6) negligent hiring. Plaintiff alleges that he
suffered injuries after Defendant slammed him into the ground in the lobby of
The Alhambra Hotel.

On November 12, 2025,
Defendant filed his answer to Plaintiff's complaint.

On December 2, 2025,
Risen filed its answer and a cross-complaint against Defendant and Defender,

alleging causes of action for (1) total indemnity, (2) partial indemnity, (3) express indemnity, and (4) declaratory relief.

On December 11, 2025,
the Court entered default as to Defender only.

On June 10, 2026, the
Court dismissed the entire complaint with prejudice as to Risen only.

On July 7, 2026,
Plaintiff filed the instant motions to deem admitted Requests for Admission, Set One (the “RFAs”), and to compel Defendant’s responses to Requests for Production, Set One (the “RFPs”).

No opposition was filed.

LEGAL STANDARD

A.

Requests for Admission

A party must respond to requests for admission within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) When a party fails to respond timely, the propounding party may seek a Court order deeming the requests for admission admitted. (Code Civ. Proc., § 2033.280.) An untimely responding party waives all objections, including privilege, unless they subsequently serve responses in substantial compliance with the Civil Discovery Act, and they demonstrate that their failure is the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a); § 2033.280, subd. (a).)

For untimely responses to requests for admission, the Court shall deem the requests for admission admitted unless the responding party serves a proposed code compliant response prior to the hearing. (Code Civ. Proc., § 2033.280, subd. (c).)

B.

Requests for Production

“[A] party may propound a supplemental demand to inspect, copy, test,

or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody, or control of the party on whom the demand is made.”(Code Civ. Proc., § 2031.050, subd. (a).) “Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand.”(Code Civ. Proc., § 2031.260, subd. (a).)

“If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it... The party making the demand may move for an order compelling response to the demand.”(Code Civ. Proc., § 2031.300, subd. (b).) “The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product.”(Code Civ. Proc., § 2031.300, subd. (a).)

DISCUSSION

Plaintiff requests the Court issue an order deeming admitted the RFAs and compelling Defendant's responses to the RFPs.

Plaintiff served RFAs and RFPs on Defendant on December 12, 2025. (Farber Decls., ¶ 2, Exhs. A.) Defendant's responses were due on or before January 19, 2026, accounting for five additional days for mail service. (Code Civ. Proc., § 1013, subd. (a).) On January 23, 2026, after Defendant did not timely respond to the RFAs and RFPs, Plaintiff's counsel sent him a letter requesting to meet and confer and warning that Plaintiff would file motions to compel. (Farber Decls., ¶ 2, Exhs. B.) On March 4, 2026, Plaintiff's counsel sent Defendant a second letter. (Farber Decls., ¶ 3, Exhs. C.) Plaintiff's counsel has also attempted to reach Defendant by telephone and email, but Defendant has not responded. (Farber Decls., ¶ 4, Exhs. D.) Defendant has not filed an opposition to the instant motions.

Given Defendant's failure to provide responses to the RFAs and RFPs, the Court grants Plaintiff's motions to deem admitted the RFAs and to compel Defendant's responses to the RFPs.

SANCTIONS

Plaintiff requests that the Court award monetary sanctions in favor of Plaintiff against Defendant in the amount of \$1,184.20 for the motion to deem admitted RFAs and \$1,102.20 for the motion to compel responses to the RFPs.

When a request for monetary sanctions is concurrently filed with a motion to compel responses, “[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).) Additionally, “If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanction unjust.” (Ibid.) Additionally, Code of Civil Procedure, section 2023.030, subdivision (a) provides that the Court may impose a monetary sanction on a party engaging in the misuse of the discovery process to pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. Misuse of the discovery process includes “[f]ailing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc., § 2023.010, subd. (d).)

Defendant failed to provide responses or file an opposition, and the Court does not find substantial justification or the existence of circumstances that make the imposition of sanctions unjust.

Plaintiff’s counsel cites her hourly rate as \$820.00 per hour and her second-year associate’s hourly rate as \$345.00 per hour. (Farber Decls., ¶ 6.) The Court finds awarding the requested sanctions for preparation of each motion as excessive. The two motions are similar and contain nearly identical attorney declarations.

Therefore, the Court elects to award attorney’s fees against Defendant in the reduced amount of \$495.40, comprised of one hour of attorney work at Plaintiff’s counsel’s second year associate’s hourly rate of \$345.00 per hour, plus the filing fees and costs of service by mail associated with each motion.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff David Flores' motions to deem admitted Requests for Admission, Set One, against Defendant Luis Enrique Flores Martinez.

The Court GRANTS Plaintiff David Flores' motion to compel Defendant Luis Enrique Flores Martinez's responses to Requests for Production, Set One.

The Court awards sanctions in the reduced amount of \$495.40 against Defendant, payable to counsel for Plaintiff within twenty (20) days of this order.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 16, 2026

Sarah
J. Heidel

Judge
of the Superior Court